

25STCV19253 25STCV19253

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-01

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Case Number: 25STCV19253 Hearing Date: July 1, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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YKILI ROSS, Cestni Que Vie Trust (CQV) established under Public Presumption - Private Living Man rebuts all presumption of wardship, infant estate, or U.S. citizenship Corpus Juris Secundum (CJS) - All Rights Reserved. Ykili: of Ross Township as Executor) of Office, and Sole Heir of Estate Debtor Entity exists solely In commercial fiction) - controlled by private creditor U.S. Citizen status rebutted - Living Man holds no allegiance to foreign corporate jurisdictions,

Plaintiff,

vs.

USC CREDIT UNION,

Defendant.

Case No.:

25STCV19253

Hearing Date:

July 1, 2026

[TENTATIVE] ORDER RE: MOTION TO QUASH SERVICE

I. BACKGROUND

Plaintiff Ykili Ross ("Plaintiff"), in pro per, filed this action against Defendant USC Credit Union ("Defendant") on July 2, 2025. This action arises from Defendant's alleged retention of estate instruments, failure to provide lawful accounting, misrepresentation of financial obligations, and interference with Plaintiff's rights.

On July 21, 2025, Plaintiff filed proof of service on Defendant by mail and acknowledgment of receipt of service on July 7, 2025, to an address outside California with return receipt requested.

On September 11, 2025, Plaintiff again filed proof of service on Defendant by mail and acknowledgement of receipt of service but neglected to fill out information regarding how and where service took place.

On February 9, 2026, Plaintiff filed a first amended complaint, with causes of action for (1) quiet title, (2) declaratory relief, and (3) breach of fiduciary duty.

On April 9, 2026, Plaintiff filed a motion for leave to file a second amended complaint.

On April 10, 2026, Defendant filed the instant motion to quash service of summons.

On April 15, 2025, Plaintiff filed a declaration with the Court in opposition to the instant motion.

On April 16, 2026, the Court denied Plaintiff's motion for leave to file a second amended complaint.

On May 4, 2025, Defendant filed a notice of non-receipt of Plaintiff's opposition to the instant motion.

On May 5, 2026, Plaintiff filed his opposition.

As of June 26, 2026, Defendant has not filed a reply.

II. LEGAL STANDARD

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co., (1994) 24 Cal.App.4th 1426, 1444.)

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service. (Summers v. McClanahan, (2006) 140 Cal.App.4th 403, 413.) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (Floveyor Internat., Ltd. v. Superior Court, (1997) 59 Cal.App.4th 789, 790.)

" 'On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and

authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.' [Citation.]" (Brown v. Garcia, (2017) 17 Cal.App.5th 1198, 1203; see also Sheard v. Superior Court, (1974) 40 Cal.App.3d 207, 211 ["[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service."].)

III. DISCUSSION

Defendant moves for an order quashing service of summons and the complaint against Plaintiff. Defendant contends service was improperly made on Defendant's counsel, who is not authorized to accept service of process on Defendant's behalf. (Mallari Decl., ¶ 2.)

The Court agrees that the proofs of service are inadequate. The burden to show proper service is on Plaintiff. (Brown, supra, 17 Cal.App.5th at p. 1203.) However, Plaintiff fails to show proper service on Defendant.

"A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: (a) To the person designated as agent for service of process ...; (b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process; (c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in subdivision (a) or (b); ..." (Code Civ. Proc., § 416.10.)

Defendant's counsel, Lorie Mallari ("Mallari"), received a package at her offices from Plaintiff mailed via U.S. Postal Service on March 6, 2026. (Mallari Decl., ¶ 2.) The package included the following documents: Form POS-040 Proof of Service by Mail; Form CIV-100 Request for Entry of Judgment and Court Judgment; Form JUD-100 of a Judgment; Sworn Declaration and Notice of Non Compliance in support of Request for Default, Demand for Accounting, and Immediate Adjudication, Transfer of Consideration, and Corrective Tax Reporting; Request for Judicial Notice; and a Declaration of True Ownership, First Creditor Status, and Right to Full Accounting and Transparency. (Mallari Decl., ¶ 2; Exh. A.) Mallari is not the registered agent of process with the California Secretary of State and is not authorized to accept service. (Mallari Decl., ¶¶ 3-4.) Rather, Douglas Kasper is the agent for service of process for Defendant. (Mallari Decl., ¶ 3.)

In October 2025, Defendant learned of Plaintiff's action against it. (Mallari Decl., ¶ 5.) On October 30, 2025 and February 23, 2026, the Court held order to show cause hearings regarding Plaintiff's service on Defendant, which Plaintiff failed to attend. (Mallari Decl., ¶ 6.) As of the filing of this motion, Plaintiff has not properly served Defendant's registered agent. (Mallari Decl., ¶ 7.)

Therefore, Plaintiff failed to comply with Code of Civil Procedure section 416.10 for service on corporations, as Mallari does not qualify as a person who may be served on Defendant's behalf under the statute.

In opposition, Plaintiff appears to be confused about the issues set for hearing with this motion. Plaintiff's opposition claims to "specially appear," requests that the Court order Defendant to produce documents for discovery and compel the deposition of a competent representative. (Opp., 3:3-8.) These issues do not pertain to the motion to quash, so the Court will not address them. The only argument Plaintiff provides pertaining to the instant motion is that "Defendant's motion to quash improperly attempts to avoid adjudication on the merits by raising procedural objections that are contradicted by evidence of service and actual notice. Plaintiff has demonstrated proper mailing, notice, and Defendant's participation through counsel." (Opp., 1:20-22.) However, as discussed above, Plaintiff has not demonstrated proper mailing and notice. (Code Civ. Proc., § 416.10.) Likewise, Plaintiff did not meet his burden of showing proper service.

Therefore, the Court GRANTS Defendant's motion to quash.

IV. CONCLUSION

The Court GRANTS Defendant's motion to quash service.

Moving Party is ordered to give notice.

DATED: July 1, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.